

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV,

Respondents.

**COMPLAINANTS’ MOTION FOR RECONSIDERATION OF ORDER ON MOTIONS
TO COMPEL AND ORDER REQUIRING BRIEFING, AND FOR OTHER RELIEF**

Pursuant to Rules 69, 71 and 150 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq., respectfully submit this motion for reconsideration of the May 6, 2021 Order on Motions to Compel and June 11, 2021 Order Requiring Briefing insofar as the Orders: (1) erroneously determined that respondent Marine Transport Logistics, Inc. (“MTL”) has produced the shipping documents for the seventeen (17) automobiles¹ at issue in this matter (such as Ocean Liner Bills of Lading, MTL House Bills of Lading, Dock Receipts, Shipper’s Export Declarations filed online with U.S. Customs and the Department of Commerce and through the Automated Export System [“AES”], and invoices for ocean freight [together with proof of when and to whom they were presented and how they were paid]) when in fact, MTL has failed to comply with its discovery obligations in this matter and has not produced *a single one of the foregoing documents for the specific vehicles listed below*; and (2) erroneously

¹ The instant motion is being made with specific regard to the four (4) individual automobiles and one (1) shipping container identified in the parties’ Joint Status Report of June 1, 2021 - - that shipping container contained three automobiles together with two automobiles which had been cut in half, and five pallets with goods.

deemed the discovery identified herein as “additional discovery” when in fact, this discovery is not “additional” but rather, it is discovery that was requested pursuant complainants’ *original* document demands and was never provided.

Upon such reconsideration, complainants additionally request that pursuant to Rule 150(b), that the Presiding Officer exercise her discretion and upon her own initiative, make such orders in regard to MTL’s failure to provide such discovery “...as are just...”.

I. RELEVANT PROCEDURAL HISTORY

The Presiding Officer may recall that this action was commenced via the filing of a Complaint on July 17, 2020. Prior to that time, and in an effort to resolve complainants’ claims without seeking the intervention of the Commission, the undersigned counsel wrote directly to Mr. Pogil and Alla Solovyeva at MTL on May 18, 2018 (See, Appendix “A” at CX0062) and requested the very same discovery which complainants had repeatedly sought from MTL with regard to the subject vehicles, including, but not limited to, the Ocean Liner Bills of Lading, MTL House Bills of Lading, and MTL Statements of Account.

The Presiding Officer may additionally that these very same documents were again requested as part of complainants document demands, and then further as part of complainants good faith attempt to meet and confer prior to the filing of a discovery motion in this matter. The documents were again requested from respondents’ counsel on June 1, 2021 prior to the filing of the parties’ Joint Status Report.

The foregoing is being brought to the Presiding Officer’s attention to highlight the question of how much work and time expenditure are the complainants and the Presiding Officer required to be burdened with over the simple issue of the production of documents which complainants are entitled to by law due to their status as shipper. We also note here that while in some instances, respondents agreed to produce the documents requested in their responses to

complainants document demands, the documents attached to their responses were not the above listed documents, and did not contain copies of the Ocean Liner Bills of Lading, MTL House Bills of Lading, Dock Receipts, Shipper's Export Declarations filed online with U.S. Customs and the Department of Commerce and through the AES system, and invoices for ocean freight (together with proof of when and to whom they were presented and how they were paid).

II. AUTHORITY TO GRANT RECONSIDERATION

A Presiding Judge "may properly reconsider and reverse interlocutory rulings made prior to the initial decision." *Odyssey Stevedoring of Puerto Rico, Inc. v. Puerto Rico Ports Authority*, 30 SRR 1324, 1328 (ALJ 2007). *See, e.g., Carolina Marine Handling v. South Carolina State Ports Authority*, 28 SRR 1603, 1603 (ALJ 2000); *Bookman v. United States*, 453 F.2d 1263, 1265 (Ct. Cl. 1972). In deciding whether to grant reconsideration, a Presiding Judge is not limited to the grounds specified in Rule 261 for reconsideration of a final decision of the Commission, but rather may act based on any relevant factual misconception. *Odyssey, South Carolina, supra*.

III. AUTHORITY TO GRANT RELIEF PURSUANT TO RULE 150(B)

Rule 150(b) of the Commission's Rules of Practice and Procedure reads in relevant part, as follows:

(b) Failure to comply with order compelling disclosures or discovery. If a party or a party's officer or authorized representative fails or refuses to obey an order requiring it to make disclosures or to respond to discovery requests, ***the presiding officer upon his or her own initiative or upon motion of a party may make such orders in regard to the failure or refusal as are just.*** (emphasis added)

III. ARGUMENT

MTL's Failure to Comply with the Directives of the August 7, 2020 Initial Order

The Presiding Officer may recall that page “3” of the August 7, 2020 Initial Order outlines the parties’ obligations with regard to discovery in this matter and reads, in relevant part, as follows:

6. Rules regarding discovery require initial disclosures within seven days of filing of the answer, limit the number of interrogatories and depositions, and impose time limits to complete discovery. 46 C.F.R. §§ 502.141-502.150.
7. The parties are reminded of their obligation to ensure preservation of all relevant evidence, including electronically stored information. *Zhi Chen v. District of Columbia*, 839 F. Supp. 2d 7, 12 (D.D.C. 2011); *The Pension Comm. of the Univ. of Montreal Pension Plan v. Banc of America Securities, LLC*, 685 F. Supp. 2d 456 (S.D.N.Y. 2010); *Zubulake v. UBS Warburg LLC*, 220 F.R.D. 212 (S.D.N.Y. 2003).
9. Compliance with the date set for completion of discovery requires that the parties serve discovery requests sufficiently in advance of the discovery cutoff so that all responses and objections will be due on or before that date...
- ...11. A motion to compel must set forth verbatim the interrogatory or request, the response that the moving party argues is insufficient, a summary of the moving party’s attempts to secure a sufficient response, and the moving party’s argument on why the response is insufficient. The moving party must provide an electronic copy in a word processing format of the motion to compel with the hard copy of the motion.
The non-moving party must use the electronic copy of the motion to compel and add any counter-summary of the attempts to secure a sufficient response, then its argument on why the response is sufficient, below the moving party’s summary and argument for each response claimed to be insufficient. The non-moving party must provide to the moving party and to the Presiding Officer an electronic copy in a word processing format of the motion to compel to which it has added its counter-summaries and arguments.

For the reasons set forth below, MTL failed to comply with the directives in paragraphs “6”, “7” and “9” of the Initial Order by failing to provide (first as part of its initial disclosures, and then as part of a response to document demands), within the time frame set forth for the

completion of discovery in this matter: the Ocean Liner Bills of Lading, MTL House Bills of Lading, Shipper's Export Declarations filed online through AES, and invoices for ocean freight for the automobiles listed below, warranting relief provided for in paragraph "11" of the Initial Order.

The Initial Order at page "2" thereof explains as follows:

The Commission recently modified its interpretation of 46 U.S.C § 41102(c), requiring the establishment of five elements to prove a violation of the section, including that the claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis. The parties are encouraged to review docket 18-06, available at www2.fmc.gov/readingroom/proceeding/18-06.

For the reasons set forth in detail below, production of the Ocean Liner Bills of Lading, MTL House Bills of Lading, AES Declarations, and invoices for ocean freight is required for complainants' to establish the five elements required in order to maintain a cause of action under 46 U.S.C § 41102(c).

The Documents Sought Are Part of the Seventeen (17) Automobiles at Issue in This Matter

The following chart is provided below for the Presiding Officer's convenience which lists the specific automobiles identified in Appendix "A" to the Complaint (CX0001) which are part of the 17 cars at issue herein for which discovery is still outstanding, and for which complainants still have not received the Ocean Liner Bills of Lading, Dock Receipts², MTL House Bills of Lading, Shipper's Export Declarations filed online through AES, and invoices for ocean freight:

² We note here that with regard to the vehicle with VIN number ending in 0283, that complainants only possess a photo containing a half of the page of the Dock Receipt and require the full page for that car and all three other cars listed here. We additionally note here that complainants are in possession of the Manifest from Ocean Liner Morning Crystal 18MR01(attached to the Complaint as Appendix "B", CX0003) for the three cars listed above with VIN Nos.: ending in 6993, 5968 and 0283. Last, we note that with regard to the car with VIN No.: ending in 2288, that MTL's Response to Complainants' Interrogatories admits at paragraph "4" thereof that respondents admitted to release of the car to "DMD Auto Sales and Export Services, Incl. – Doc Receipt date: May 14, 2018" implicating MTL's possession of this document.

MAKE	MODEL	YEAR	VIN ENDING IN
Lexus	GS 300	2006	6993
Toyota	Avalon	2007	5968
Toyota	Venza	2010	0283
Toyota	Camry	2004	2288

With regard to the four automobiles listed above, complainants also attach hereto as Appendix “B” the copies of the MTL Invoice Nos: 65929, 71472, 68751, and 65921 together with the MTL Transaction listing (all of which were produced by respondents) indicating that the the invoices were paid and that the shipper of all four cars was “NNabugwu Chinedu Andrew”.

With regard to the single container (containing three automobiles together with two automobiles which had been cut in half, and five pallets with goods), that container was listed on page “2” of the parties Joint Status Report and on the MSC Bill of Lading and MTL Bill of Lading (to wit: pages Bates Nos.: CX0004 and CX0009 – CX0010 which are attached to the Complaint as Appendix “B”) and also identified in paragraphs “141-144” and “169-171” of the Complaint, for which complainants seek only the copies of the AES declarations, proofs of filing, printouts and/or confirmations which relate to the automobiles contained therein.³

The Discovery Sought Falls within the Commission’s Standard of Review for Permissible Discovery

As the Presiding Officer is aware, the instant action arises out of the shipment of seventeen (17) automobiles purchased by plaintiffs and delivered to MTL’s warehouse for shipment abroad, wherein complainants allege violations of the Shipping Act sections 41102(c), 41104(3), 41104(10), 40901(a), 41102(6), and 41102(b) in regard to the seventeen vehicles.

³ As set forth in the parties’ Joint Status Report, it was explained to counsel for MTL via email that even without the Presiding Officer’s Order of May 6, 2021, the AES records must be produced upon demand of the shipper pursuant to Section 30.3 of the Foreign Trade Regulations and the Shipping Act of 1984 as amended by the Ocean Shipping Reform Act of 1998.

Specifically, complainants allege, inter alia, that respondents: a) refused to respond to Complainants' requests for statements of account, invoices and other documentation relating to the application of monies received by MTL from Complainants to Complainants' statement of account with MTL; b) withheld documentation needed to secure the release of the cars; c) filed to provide notice regarding the whereabouts of the cars; d) refused to promptly ship new cargo (cars recently delivered to MTL's facility) ready for export and in possession of respondents until storage fees were paid for cargo unrelated to the new cargo, which resulted in additional storage fees being charged as to new cargo which could have been avoided; e) refused to promptly ship new cargo (cars recently delivered to MTL's facility) ready for export and in possession of respondents until inland freight fees were paid for cargo unrelated to the new cargo, which resulted in additional storage fees being charged as to new cargo which could have been avoided; f) refused to follow instructions from complainants as to how to apply complainants' monies held by respondents in respondents' bank account as a deposit for purposes of paying for ocean freight; g) knowingly and willfully cut in half, dismantled, and destroyed two (2) automobiles belonging to complainants and which were shipped by respondents in a shipping container; and h) knowingly and willfully misdelivered Complainants' automobiles.

The Presiding Officer's May 6, 2021 Order on Motions to Compel recites the standard of review regarding discovery, explaining as follows:

The Commission's Rules permit discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1).

On motion or on its own, the presiding officer may limit the frequency or extent of discovery otherwise allowed by these rules if the presiding officer determines that:

(A) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive;

(B) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or

(C) The burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.

The discovery sought by complainants herein and which was not produced by respondents is directly relevant to the allegations in the complaint identified above and falls squarely within the standard of review set forth above. Complainants' requests for the Ocean Liner Bills of Lading, MTL House Bills of Lading, Shipper's Export Declarations filed online with U.S. Customs and the Department of Commerce and through the Automated Export System ("AES"), and invoices for ocean freight and other charges for the seventeen (17) automobiles at issue in this matter were identified in the May 6, 2021 Order on Motions to Compel at page "3" thereof (Demand Nos.: 1 through 8).

While the Presiding Officer recites verbatim MTL's responses to complainants' demands on page "3" of the May 6, 2021 Order, it is respectfully submitted that the Presiding Officer, in error, then concluded that that MTL had allegedly demonstrated "...that it either produced documents responsive to Complainants' requests or pointed to the location of documents already in Complainants' possession...". Without burdening the Presiding Officer in a third *ad nauseum* point-by-point recitation of a specific document demand, MTL's response, and complainant's conclusion as to how the documents produced or referenced in the response do not include the documents requested (said point-by-point having been set forth in detail first in Complainants' Motion to Compel of February 22, 2021 and again in the Parties' recent Joint Status Report of June 1, 2021), suffice it to say that *nowhere*, in the entirety of the documents produced by MTL or referenced by MTL in its responses, exist the following: Ocean Liner Bills of Lading, MTL House Bills of Lading, Shipper's Export Declarations filed online with U.S. Customs and the

Department of Commerce and through the Automated Export System (“AES”) and invoices for ocean freight for the automobiles described above.

With specific regard to the AES declarations which were not produced by MTL, those documents go to the very heart of this matter and complainants’ allegations that the automobiles were misdelivered and/or converted under the false premise of MTL having exercised a maritime lien for not paying ocean freight and other charges.⁴ As the Presiding Officer is aware, the AES declarations identify, among other things: the U.S. Principal Party in Interest (“USPPI”) of Foreign Principal Party in Interest (“FPPI”) for the shipment transaction (to wit: the owner of the car at the time of export), as well as the ultimate consignee, and the freight forwarder for the shipment. It is very telling that MTL has not provided these documents which would indicate whether or not MTL identified complainants in the AES records as the owner of the cars at the time of shipment and to whom the cars were ultimately consigned. Again, and by way of example, and in response to complainants’ document demand No.: 5(d), while respondents agreed to provide the AES declaration (for AES ITN: X20180412698663) for the car listed on the bill of lading identified on the Dock Receipt listed on the demand (and refer complainants to “Exhibit 10”) the Exhibit “10” provided by MTL contains no such AES declaration.

On the issue of complainants’ request that the Presiding Officer compel the production of the AES records, the May 6, 2021 Order briefly stated as follows:

As an initial matter, it is noted with regard to the Order in MAVL Capital Inc. v. Marine Transport Logistics, Inc. (FMC Docket No. 16-16) cited by Complainants that discovery rulings issued in other proceedings are not binding on this proceeding. Docket No. 16-16 is a different proceeding involving different parties and facts. Accordingly, determinations made as to the relevancy of requests in Docket No. 16-16 do not necessarily apply to this proceeding.

⁴ All other charges such as inland freight and warehouse charges were listed as Amount Due: 0.00 on the MTL Transaction Listing dated December 9, 2020 (See, Appendix “B”).

As the Presiding Officer is aware, and while the above stated language does not necessarily preclude the production of the AES records by MTL, the parties' joint status report of June 1, 2021 explains that respondents have construed the above language to be ruling on the relevancy of the AES records, and accordingly complainants respectfully request that the Presiding Officer clarify this issue in favor of complainants and compel the production of the AES records, together with the Ocean Liner Bills of Lading, MTL House Bills of Lading, Dock Receipts, invoices for ocean freight and other charges for the seventeen (17) automobiles.

Production of the AES records, Ocean Liner Bills of Lading, MTL House Bills of Lading, Dock Receipts and Invoices for Ocean Freight and Proof of How and When They Were Paid Is Required In Order To Establish The Five Elements Required In Order To Maintain A Cause Of Action Under 46 U.S.C § 41102(c)

The Presiding Officer is well versed with the Commission's Interpretive Rule 46 C.F.R. § 545.4, which reads, in relevant part, as follows:

§545.4 Interpretation of Shipping Act of 1984—Unjust and unreasonable practices.

46 U.S.C. 41102(c) is interpreted to require the following elements in order to establish a successful claim for reparations:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (d) The practice or regulation is unjust or unreasonable; and
- (e) The practice or regulation is the proximate cause of the claimed loss.

As to the first element set forth above (to wit: whether or not MTL was acting as an ocean transportation intermediary ["OTI"]), complainants have a burden to establish by a preponderance of the evidence that MTL was acting as an OTI with regard to the shipment of the

automobiles, and in particular, since MTL disputes that fact (and has taken the position that it simply disposed of the cargo which complainants had allegedly abandoned). As explained in the Commission's Memorandum Opinion and Order of October 29, 2020 in the matter of *MAVL Capital Inc., et al. v. Marine Transport Logistics, Inc. et al.* (FMC Docket No.: 16-16):

Properly framed, the question is whether Respondent MTL was a common carrier with respect to the allegations regarding the Mercedes. *See, Tienshan, Inc. v. Tianjin Hua Feng Transport Agency Co., Ltd.*, FMC No. 08-04, 2011 FMC LEXIS 9, *39 (ALJ Mar. 9, 2011). Common carriers are defined by three traits; they: (1) hold themselves out to the general public as providing transportation by water for passengers or cargo between the United States and a foreign country; (2) assume responsibility for transporting the passengers or cargo from the port or point of receipt to the port or point of destination; and (3) use, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a United States port and a foreign port. 46 U.S.C. § 40102(7) and (17); 46 C.F.R. § 515.2(e) and (k).

Id. at p. 11.

Pages 12-13 of the Commission's Memorandum Opinion and Order explain that the Maersk Bill of Lading was directly relevant to issue of whether or not MTL was acting as an OTI with regard to the shipping transaction at issue.

As to elements (b), (c), (d), and (e) of the Commission's Interpretive Rule set forth above, the AES records, Ocean Liner Bills of Lading MTL House Bills of Lading, Dock Receipt, Statements of Account and Invoices for Ocean Freight are required in order for complainants to meet their burden of proof. Again, the Presiding Officer is respectfully referred to page "4" of the instant brief and to paragraphs "a" through "i" which highlight the various allegations in the complaint, which, if proven will establish that MTL's acts and omissions with respect to the cargo are occurring on a normal, customary, and continuous basis, are directly related to the receiving, handling, storing, and delivering of property, that they are unreasonable and that they are the proximate cause of complainants' loss.

By simple way of example, it is alleged that MTL continually refused to follow instructions from complainants as to how to apply complainants' monies held by respondents in respondents' bank account as a deposit for purposes of paying for ocean freight and other charges under MTL's tariff. The production of invoices for Ocean Freight would go directly to the issue of: (1) whether or not MTL's refusal to inform complainants as to the status of their payments occurred on a regular basis; and (2) the manner in which the payments were applied and whether the manner in which they were applied had occurred on a regular basis.

As to the above two issues, it is alleged in the Complaint that MTL failed to provide complainants with the reason why MTL was not applying monies for ocean freight, inland charges and other charges at the time of export⁵; that MTL deliberately refused to do so in order to prevent the cars from being exported right away; and that MTL rather used the money to cover old storage charges in order to keep the cars in perpetual storage. Put simply, new cars came into MTL's facility and sat there accruing storage charges while complainants' monies for ocean freight for the new cars were used to cover storage charges for cars that had been at the facility prior to the delivery of the newer cars.

A second example would be the Dock Receipts, Ocean Liner Bills of Lading MTL House Bills of Lading, and the AES filings and the information contained therein - - establishing whom the cars were shipped to (if not complainants) and to whom they were ultimately consigned (if not complainants)⁶.

⁵ On this issue, it is respectfully submitted that ocean freight was not even due at the time of export and that there was no reason for MTL to refuse to export the cars due to alleged non-payment of ocean freight. The Presiding Officer may recall that paragraph "165" of the Complaint explains that the language in MTL's House Bills of Lading provided that payment of ocean freight "...must be received no later than 2 weeks after sailing date". MTL's verified Answer to the Complaint admits this fact. MTL's invoices similarly provided that payment was due "...10 business days after the sailing...".

⁶ It is MTL's contention that based upon its House Bill of Lading that MTL consigned the containers to complainants.

The Presiding Officer is also familiar with the language set forth in the recently issued Order Denying Complainants' Motion for Discovery Related Sanctions, dated February 5, 2021 in the matter of *MAVL*, *supra*, which reads on pages 2-3 thereof, as follows:

The parties have exchanged discovery in related proceedings and the 315 pages of exhibits to the discovery sanctions motion demonstrate that a significant number of documents have been exchanged in this proceeding. Moreover, the motion primarily raises factual disagreements, for example, whether there is sufficient proof that documents were provided to Complainants and whether documents and statements are credible. Evidence, however, is not "non-responsive" just because a party does not agree with it.

In the matter at bar, it is respectfully submitted that the issue here is not whether or not MTL's documents are 'non-responsive' but rather that the Ocean Liner Bills of Lading, MTL House Bills of Lading, Dock Receipts, AES Declarations and invoices for ocean freight *were never produced in this matter* - - this is not a mere "disagreement" over factual issues, but rather, an application to the Presiding Officer to compel the production of the very documents required in order for complainants to meet their burden of proof in this matter. In addition to the relief requested herein and for the very same reasons that complainants sought Discovery Related Sanctions against MTL in the matter of *MAVL*, *supra*, complainants in this matter now seek the same relief and sanctions as identified in the Motion for Discovery Related Sanctions, dated January 27, 2021 (FMC Docket No.: 16-16 at document no.: 60) which is incorporated herein by reference.

A final point which complainants respectfully ask the Presiding Officer to consider is with regard to the recent Order Requiring Briefing of June 11, 2021 which states as follows:

A joint status report is not a motion, thus Complainants' request fails to satisfy the Commission's requirements for the filing of motions or for filing requests for reconsideration and is procedurally improper. The request is also substantively improper as Respondents appear to have substantially complied with the order to produce the storage invoices. See JSR, Appendix C. Accordingly, Complainants' request for **additional** discovery is DENIED. No further discovery will be ordered. (emphasis added).

In the first instance, the undersigned wishes to express that while complainants are cognizant of the requirements of the Commission to file a motion when seeking affirmative relief, it was believed that a Status Report identifying any issues with discovery would be sufficient as it has been in the past (see, e.g., Remand Scheduling Order in the matter of *MAVL*, *supra*, dated December 10, 2020, and ruling on various discovery requests identified in the parties' Joint Status Report of December 2, 2020).

Also, the undersigned wishes to bring to the Presiding Officer's attention that the discovery sought herein is not additional, and rather, that it has been sought all along since the start of this litigation, and that this fact also be taken into consideration in ruling on the instant motion.

Last, while the parties Joint Status Report explains that despite having been ordered by the Presiding Officer to produce copies of storage invoices for the subject cars, respondent's email to the undersigned counsel of May 19, 2021 fails to contain storage invoices for the subject cars located at MTL's facility in Houston. It appears that the Presiding Officer may have overlooked this issue in ruling that MTL had "substantially" complied with discovery, when in fact the Houston storage invoices were never provided nor attached to Mr. Pogil's email to the undersigned of May 19, 2021.

In closing, complainants thank the Presiding Officer and the Commission for their continued courtesy and consideration in this matter and simply ask that they be provided with a fair opportunity to be heard on their claims and be given the discovery needed in order to do so.

CONCLUSION

Accordingly, for the reasons set forth above, complainant requests that the instant motion be granted in its entirety, and that upon reconsideration, that: (1) the Commission revise the May 6, 2021 Order on Motions to Compel and June 11, 2021 Order Requiring Briefing; (2) compel

the production of the shipping documents for the seventeen (17) automobiles at issue in this matter, such as Ocean Liner Bills of Lading, MTL House Bills of Lading, AES Declarations, Dock Receipts, and invoices for ocean freight; (3) extend the complainants time to file their Brief with Proposed Findings of Fact and Appendix by at least 27 days from the date that MTL produces the documents requested herein (in order to maintain the same amount of time from the date of the June 11, 2021 Order Requiring Briefing to the date that complainants' brief was originally due); (4) sanction respondents as appropriate; and (5) grant such other and further relief as the Presiding Officer deems just and proper

Dated: June 17, 2021
Brooklyn, NY

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR RECONSIDERATION OF ORDER ON MOTIONS TO COMPEL AND ORDER REQUIRING BRIEFING, AND FOR OTHER RELIEF** upon Respondents' Counsel at the following address:

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